পঞ্জীভুক্ত নম্বৰ - ৭৬৮ /৯৭ Registered No.-768/97

অসম ৰাজপত্ৰ

सत्यमेव जयते

THE ASSAM GAZETTE

অসাধাৰণ

EXTRAORDINARY

প্ৰাপ্ত কৰ্ত্তৃত্বৰ দ্বাৰা প্ৰকাশিত

PUBLISHED BY THE AUTHORITY

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No. 1 Dispur, Monday, 2nd January, 2023, 12th Pausa, 1944 (S. E.)

GOVERNMENT OF ASSAM

ORDERS BY THE GOVERNOR

ENVIRONMENT AND FOREST DEPARTMENT

NOTIFICATION

The 9th December, 2022

ECF No. 232904.- In exercise of the powers conferred by section 40 of the Assam Forest Regulation, 1891 (Regulation VII of 1891) and in pursuance of the direction of Hon'ble Supreme Court's Order dated 15.04.1998 in WP (C) 202/95 and WP (C) 171/96 the Governor of Assam is hereby pleased to make the following rules, namely :-

Short title and commencement

1. (1) These rules may be called The Assam Trees Outside Forest (Sustainable Management) rules, 2022.

(2) These rules shall come into force on the date of their Publication in the Official Gazette.

Definitions

2. (1) In these rules, unless there is anything repugnant to the subject or context-

(a) **"Captive Plantation"** means a plantation scheme covering a continuous patch of 10 (Ten) hectares or more having plantation of trees as specified under sub-section (2) of section 3 of Regulation raised by wood-based industrial unit(s) and/or other private entities, on non-forest land, to meet the requirement of respective wood-based industrial unit(s)/ private entities and/or otherwise;

(b) **"Certificate of Origin"** means a certificate and/or a document testifying the origin of the product (s), as defined under these rules, issued by the

Divisional Forest Officer having jurisdiction over the area from where the raw material used in making of the product(s) originated, to the owners or legal title holders or legal assigns, owning the product(s) and/or raw materials, for traceability of the origin of the product(s), under the due process established under these rules;

(c) **"Department"** means Environment and Forest department of Government of Assam;

(d) **"Government"** means Government of Assam;

(e) **"Forest"** includes:

(i) Reserved Forest or any Protected Area (declared under the Wildlife Protection Act, 1972) or any other area constituted as forest under any applicable statute in the State of Assam;

(ii) any area recorded as "Forest" in Government records maintained by the Forest Department or any other Government departments; and

(iii) A continuous patch of 10 hectares or more having not less than 200 naturally grown trees per hectare on an average;

(f) **"Non-forest land"** for the purpose of these rules means an area which is not "forest" as per the clause (e) of rule 2 above;

(g) **"Owner"** means a legal title-holder of the land, being an individual or firm or company or trust or society or any other body corporate, holding land in its own name and/or having a valid lease deed from another legal title-holder of the land;

(h) **"Plantation"** under these rules means a
(i) plantation scheme covering a continuous patch of 0.1 hectare or more having plantation of 'trees' as defined under sub-section (2) of section 3 of the Regulation, grown in a single year or spread over multiple years on non-forest land or in community land;

(ii) tree species covered under sub-rule (1) of rule 5 if, planted under any plantation scheme shall not be covered under this definition;

(iii) single trees and/or rows or clusters of such trees, not covered under sub-rule (1) of rule 5, if planted along farm bunds, homesteads, farm lands etc covering area less than 0.1 hectare, and shade trees as defined in clause (l) of sub-rule (1) of rule 2shall be treated as individual trees not amounting to Plantations.

(i) **"Plantation Registering Authority"** means the Divisional Forest Officer having jurisdiction over the area where a plantation is situated;

(j) **"Plantation Registration Certificate"** means a Certificate, issued by the Registering Authority, under these rules, to the Owner of Plantation;

(k) **"Plantation Working Scheme"** means a working scheme prepared for a plantation, whether captive or otherwise, having an area of more than 10 hectares, by the Owner of the Plantation;

(l) **"Shade Trees"** means trees planted in Tea Estates and Tea Gardens to provide shade to Tea bushes which only includes tree species mentioned in clause (ii) of sub-rule (1) of rule 5 of these rules;

(m) **"Trees outside Forest (ToF)"** means any tree or group of trees or any plantations standing on non-forest lands;

(n) **"Website/Portal"** means<assamforestonline.in> or any other url identified by the Department from time to time to be used for all online transactions under these rules;

(o) **"Wood-Based Industrial Unit"** means any entity or firm or company or industry established and operating in the State of Assam as defined in the Assam Wood-Based Industries (Promotion and Development) Rules 2022;

(p) **"Regulation"** means the Assam Forest Regulation, 1891 (Regulation 7 of 1891).

(2) The term of word used but not defined in these rules shall have the same meaning as has been respectively assigned to them in the Regulation, 1891.

Registration of plantations

3. (1) All plantations shall be registered with the Plantation Registering Authority in the following manner namely,:-

(i) the plantation may be registered once it has attained an age of 5 (Five) years.

(ii) in case of a plantation existing prior to the commencement of these rules, not having been registered under the Assam (Control of Felling and Removal of Trees from Non-Forest Lands) Rules, 2002, the Owner may register within three years of commencement of these rules, provided the plantation has attained an age of 5 (Five) years.

(iii) any plantation, irrespective of the area and size, if already registered under the Assam (Control of Felling and Removal of Trees from Non-Forest Lands) rules 2002, shall be deemed to have been registered under these rules.

(iv) timely registration of plantation under these rules means registration of the plantation within 5 (five) to 7 (seven) years of raising. Further, in case of a plantation being raised in a staggered manner, timely registration shall mean registration of each block of the plantation within 5 (five) to 7 (seven) years of its respective creation. The registration shall be updated accordingly.

(v) timely registration of the plantation, as above, may become eligible for incentives under these rules and under any other promotion policy of the Government.

(vi) when the distance is more than 5 (five) km from the nearest forest, a self-certification by the owner along with land ownership documents etc. and geo-tagged photographs of the trees, plantation, to be uploaded on the Website/Portal, shall be considered sufficient to generate Registration Certificate.

(vii) When the distance is 5 km or below from any nearest forest, the Forest Department may verify the age of the plantation and establish whether the plantation stands on non-forest land.

(2) Procedure for submission of Application for registration of plantation shall be in the following manner, namely,:-

(i) The Owner when desirous of registering his plantation under these rules shall submit online application in the Website/Portal for registration as per **Annexure-I** appended to these rules along with the documents specified therein. Any deficiency in the Application shall be communicated online to the Applicant for correction. The Applicant may rectify the deficiencies and re-submit the Application online. On successful submission of the online application in the format at **Annexure-I**, portal system shall issue an acknowledgement online to the applicant.

(ii) where plantation site is more than 5 (Five) km from any nearest forest, owner or applicant may generate Registration Certificate automatically within 48 hours from the generation of acknowledgment of receipt of application.

(iii) where plantation site is 5 (Five) km or below from any nearest forest, the Divisional Forest Officer concerned, once satisfied with the completeness of the said application shall examine or arrange for examination of the factual details, cause to carry out field verification by Forest authorities for ascertaining the correctness of the details of plantation and that the said land is a non-forest land and also to measure the aerial distance between the plot of land and the nearest forest(s).

(3) Field Verification Report: Depending upon the aerial distance of the plot from nearest forest(s), the verification for registration of a plantation shall be conducted by the following officers and the Field Verification Report (F.V.R.) shall be duly prepared as per format at **Annexure-II** of these rules:

(i) When the distance is between 2 km to 5 km, the field verification shall be carried out by the Range Forest Officer concerned;

(ii) When the distance is 2 km or below, the verification shall be conducted by the Range Forest Officer concerned in the presence of an Assistant Conservator of Forests;

(iii) When the distance is more than 5 km, the Field Verification certificate shall not be required;

(iv) The time taken for Field Verification shall be within 15 (fifteen) working days from the date receipt of acknowledgment of application by the applicant.

(4) When the Plantation Registering Authority is satisfied that,-

(i) the plantation site is a non-forest land;

(ii) the land ownership is confirmed and

(iii) the species-wise number and age of standing trees, the Plantation Registering Authority shall issue Plantation Registration Certificate to the Applicant, as per format at **Annexure-III**, appended to these rules, within 15 (Fifteen) working days from the date of generation or issuance of acknowledgment of receipt of application. If the required conditions are not fulfilled, the Plantation Registering Authority shall reject the application by providing the reasons thereof.

(5) Validity of Plantation Registration Certificate:

(i) The Plantation Registration Certificate issued under these rules does not confer any legal right as far as ownership of the plot of land on which plantation was raised and the same cannot be used as supporting document or evidence for claiming ownership on the said land in any judicial or extrajudicial for an ownership.

(ii) The validity of the Plantation Registration Certificate is for 5 (Five) years and the Owner has to apply again for renewal thereafter. The renewal may be granted for a further period of 5 (Five) years, after proper field verification.

(6) The Plantation(s) of tree species exempted from obtaining prior permission for felling under rule 5, the Owner(s) is/are at liberty to register the same with the Forest Department. In case the plantation consists of a mix of the exempted species as per sub-rule (1) of rule 5and non-exempted species as per sub-rule (2) of rule 5, the plantation shall be required to be registered, and the provisions of rule 4 shall apply only to the non-exempt species.

Permission for felling of trees and issuance of Certificate of Origin (C.O.)

4. (1) (i) The permission for felling of tree(s) from non-forest areas including trees from registered and non-registered plantations shall be granted except for tree species identified in sub-rule (1) of rule 5of these rules subject to the other conditions mentioned therein.

(ii) Felling of tree(s) for self-consumption withinthe premises where the tree(s) is/are standing shall not require any permission. For removal and transportation of the outturn arising out of such felling outside his property, the provisions applicable to the said species under sub-rule (5) of rule 4 and rule 5 of these rules shall apply.

(iii) Irrespective of the distance from the nearest forest and category of trees whether exempted, partially exempted or non-exempted, the Owner shall not remove, damage, uproot the stump(s) of the felled tree(s), for a minimum period of 60 (Sixty) days from the date of removal, disposal, transportation of the outturn.

(2) The procedure for obtaining Certificate of Origin when proposed felling site is registered or non-registered and is located at a distance of above 5 (Five) km from nearest forest:

(i) For operation of tree(s), including tree species mentioned in A&B Categories of Schedule of Rates of Royalty, as notified by the Government of Assam from time to time, such as Amari, Badam, Bola, Bonsum, Borpat, Gamari, Gurjan, Haldu, Hollock, Hollong, Khair, Khokan, Mahogany, Mekai, Sal, Sissoo, Sundi, Teak, Tita Sopa etc, from non-forest land and obtaining Certificate of Origin, the Owner shall submit an application online in Website/Portal as per format at **Annexure-IV** appended to these rules along with a copy of each of the required documents specified therein. Any deficiency in the Application shall be communicated online to the Applicant for correction. The Applicant may rectify the deficiencies and re-submit the Application online. On successful submission of the online application as per format at Annexure-IV, an acknowledgement shall be issued through online to the applicant.

(ii) The provisions of base marking, felling, sectioning and piece-passing shall not be applicable.

(iii) Online felling permission shall be generated within 48 hours from the date of issuance of acknowledgement of the receipt of the application, provided all the stipulated requirements of the online application are complete and satisfactory. If the said permission is not generated within 48 hours as stipulated above, the same would be deemed to have been issued.

(iv) The Owner shall upload the details of the outturn on the Website/Portal along with geo-tagged photographs for issuance of Certificate of Origin.

(v) The Department reserves the right to manually inspect the said plantation.

(vi) The Certificate of Origin shall be issued online in the Website/Portal within 48 hours of uploading of information, details, data, documents as per clause (i) and (iv) of sub-rule (2) above. The Certificate of Origin (C.O.) shall be generated online by the Owner, as per format specified under clause (x) of sub-rule (3) below, subject to online deposition of 1% of the Government value of outturn. If the Certificate of Origin (C.O.) is not generated within 48 hours from the date of issuance of acknowledgment of the receipt of the application, the same would be deemed to have been issued.

(3) Procedure for obtaining Certificate of Origin when proposed felling site is registered and is located at a distance of 5 (Five) km or below 5 km from nearest forest shall be as follows namely,:-

(i) For operation of trees from non-forest land and obtaining Certificate of Origin in this case, the title holder shall submit an application online in Website/Portal as per format at **Annexure-IV** appended to these rules along with a copy of each of the required documents specified therein. Any deficiency in the Application shall be communicated online to the Applicant for correction. The applicant may rectify the deficiencies and re-submit the Application online. On successful submission of the online application in **Annexure-IV**, an acknowledgement shall be issued online to the applicant.

(ii) In case of registered plantations located at a distance of 5 (Five) km or below 5 km from the nearest forest, felling permission shall be granted after base marking, in the following manner, namely:

(iii) (a) The base marking exercise shall commence within 5 (Five) working days from the date of issue of acknowledgement of the application.

(b) Base marking shall be carried out by a Forest Officer not below the rank of a Forester-I by making proper entries in the Tree Measurement Book (T.M.B.) under due signature of all the officials concerned.

(c) Base marking exercise of all the trees to be felled shall be completed at the rate of 50 (Fifty) trees per day.

(d) Base marking report shall be submitted along with the relevant pages of the Tree Measurement Book (T.M.B.)

(e) The felling permission shall be granted, subject to completion of base marking exercise of all the trees to be felled, at the rate of 50 (Fifty) trees per day.

(iv) Felling and Sectioning:
Felling and sectioning, shall be allowed by the Divisional Forest Officer, in the form of felling permission only when the Tree Measurement Book entries tally with the records of the Field Verification Report. The felling permission shall be issued within 7 (Seven) working days once the Tree Measurement Book (T.M.B.) entries are uploaded in the Website/Portal by the Range Officer concerned. If the Felling Permission is not generated within the stipulated time, the same would be deemed to have been issued on the 8th (Eighth) working day. The felling operation shall be undertaken by the Owner only after issuance of felling permission and in the presence of a forest officer, not below the rank of Forester-I to be deputed by the Range Officer concerned.

(v) Piece-Passing:
Piece passing of the sectioned logs shall be done, only at the stump site, by a Forest Officer not below the rank of Forester-I. Sectioned logs, if removed from the stump site or any tree, if felled without prior permission from the Divisional Forest Officer, shall not be piece passed, but be seized and offence report drawn, to be dealt as per provisions of relevant rules. Piece passing report shall be submitted as per format at **Annexure-V** along with the relevant Log Measurement Book (L.M.B.) pages.

(vi) The details of base marking, felling, sectioning and piece-passing shall be uploaded on the Website/Portal by the Range Officer concerned and verified online by the Assistant Conservator of Forests by tallying with the Tree Measurement Book and Log Measurement Book, and shall forward the details online to the Divisional Forest Officer for approval.

(vii) Whenever the volume of the outturn of any tree is found to exceed 10% of the volume obtained from the local volume table percentage deviation as shown in column 9 of the format at **Annexure-V**, then the outturn of the tree shall be physically verified at stump site by an officer not below the rank of an Assistant Conservator of Forests and the findings shall be recorded in the format at **Annexure-V** under his own seal and signature giving the probable reasons of such increase in volume. For the species for which volume table is not available, the piece marked logs at stump site shall be physically verified by an officer not below the rank of an Assistant Conservator of Forests and the findings shall be recorded in the said format as at **Annexure-V**. If the deviation in volume exceeds 25%, the same shall be physically verified by a Committee constituted by the In- charge of Forest Circle concerned.

(viii) The Divisional Forest Officer, once satisfied with the requirements, as mentioned above, shall approve the same online within 3 (three) working days.

(ix) The details of base marking, felling, sectioning and piece-passing shall be uploaded on the Website/Portal by the Range Officer concerned and verified online by the Assistant Conservator of Forests by tallying with the Tree Measurement Book and Log Measurement Book, and shall forward the details online to the Divisional Forest Officer for approval. The Divisional Forest Officer shall approve the same online within 3 (three) working days.

(x) The Certificate of Origin (C.O.) shall be generated online by the Owner, as per format at **Annexure-VI**, subject to online deposition of 1% of the Government value of outturn.

(xi) In this case, the outturn shall be removed from the stump site only after affixing the check hammer impression, property mark, electronic tags by the Range Forest Officer under whose jurisdiction the plot falls.

(4) Procedure for obtaining Certificate of Origin when proposed felling site is not registered and is located at the distance of 5 (Five) km or below 5 km from the nearest forest shall be as follows, namely,:-

(i) For operation of trees from non-forest land and obtaining Certificate of Origin in this case, the Owner shall submit an application online in Website/Portal as per the format at **Annexure-IV** appended to these rules along with a copy of each of the required documents specified therein. Any deficiency in the application shall be communicated online to the Applicant for correction. The Applicant may rectify the deficiencies and re-submit the application online. On successful submission of the online application in the format at **Annexure-IV** and the online system shall issue an acknowledgement shall be issued online to the applicant.

(ii) In this case, grant of felling permission shall be subject to field verification as provided under sub-rule (4) of rule 3 of these rules.

(iii) Base-marking exercise, in this case shall commence within 15 (Fifteen) working days from the date of issuance of acknowledgement and on successful completion of the same, base marking exercise, felling, sectioning, piece-passing and issuance of Certificate of Origin, shall be carried out as per provision of clause (iii) to (xi) of sub-rule (4) above.

(5) Removal and transportation of outturn:

(i) In case of transportation of outturn within the State of Assam, the same may be undertaken on the strength of the Certificate of Origin issued under these rules. The Certificate of Origin shall be used within the stipulated time allowed and it shall not be used for more than one time and the same shall be defaced after the first use. The receipt of such outturn covered by the said Certificate of Origin, irrespective of the distance of the source from nearest forest, shall be duly intimated online in the WBI portal by the Primary/secondary/composite WBI, within a period of 24 hours. A Forest Officer, not below the rank of Forester-I, having jurisdiction, shall within 3(three) working days of receipt of such online intimation verify the outturn in question, deface the Certificate of Origin and make suitable entries in the website/portal. These entries shall be intimated to the Divisional Forest Officer under whose jurisdiction the Certificate of Origin was issued and the Divisional Forest Officer under whose jurisdiction the outturn is removed. On receipt of such intimation, the Divisional Forest Officer under whose jurisdiction the Certificate of Origin was issued may undertake or cause to undertake field verification on a random basis.

(ii) In case any outturn is required to be moved out of the State, within the North-East India, irrespective of the distance of the plantation from nearest forest, the Owner shall follow all the procedures required for felling and removal of the outturn and have to apply to the Divisional Forest Officer concerned for water-marked Transit Pass.

(iii) In case any outturn is required to be moved out of the North-East India, irrespective of the distance of the plantation from nearest forest, the Owner shall follow all the procedures required for felling and removal of the outturn and the same shall be permitted only by the Railways as per the direction or guidelines of the Hon'ble Supreme Court of India and/or any order, notification, guideline as issued by the Ministry of Environment and Forest and Climate Change, Government of India time to time.

(iv) In case the outturn cannot be lifted by the Owner within the stipulated period mentioned in the Certificate of Origin, he shall intimate the Divisional Forest Officer in writing about the reasons of his inability to do so and praying for the required time. The Divisional Forest Officer in turn may allow a reasonable time, not exceeding 6 (Six) months, after examining the circumstances.

(v) The Transit Passes in case of timber which has been seized and released as per the provisions of the rule 7 shall be issued online only after approval of the Conservator in-charge of the Circle concerned.

(6) The above provisions shall not apply to any tree standing outside forest, which has become threat to and is likely to cause damage to public life and property is causing or likely to cause obstruction to traffic and injury to passers-by and a tree which is wind-fallen, struck by lightning, burnt in fire. In such cases:

(i) If the tree is standing on private property, the Owner of the property shall have right to lop, fell, cut the same. For removal and transportation of the outturn outside his property, the provisions applicable to the said species under sub-rule (6) of rule 4 shall apply.

(ii) If such tree is standing on government land including government institutions, road-side areas etc. including the ones raised by the Social Forestry wing of the Department, on non-forest land using funds of the Government, it shall be removed only departmentally by the forest officer having jurisdiction. The outturn shall be the property of the Government.

(iii) In cases where felling operation has been done departmentally, the Owner of the land/agency shall have to defray the cost of cutting, lopping, felling and removal to the Department:

Provided that, if the premises in question is a government property, the cost shall be defrayed to the Department by the Deputy Commissioner of the district.

(7) Every person, institution, agency shall be encouraged to plant ten times the number of trees felled as per rule 4of these rules and the Department may offer requisite seedlings at subsidized rates.

Tree species grown on non-forest land that are exempted from obtaining prior permission for felling

5. (1) For felling and conversion of trees of the following species grown on non-forest land, no felling permission from the Forest Department shall be required if,-

(i) the list of tree species exempted from obtaining prior permission for felling and conversion is annexed at **Schedule-I**.

(ii) the list of shade tree species exempted from obtaining prior permission for felling and conversion is annexed at **Schedule-II**.

(iii) any shade tree species other than the shade tree species mentioned in clause (ii) of sub-rule (1) above shall require felling and transport permission as per sub-rule (6) of rule 4 of these rules.

(2) The tree species, as specified in the format at **Schedule-III** are exempted under these rules from obtaining prior permission for felling, conversion and transportation of outturn when they are meant for consumption within the State.

(3) If the Owner desires to-

(a) transport the outturn outside Assam,

(b) or export the outturn and/or derivatives outside the Country irrespective of the distance of his land from the nearest forest, he is required to follow the procedures laid down under rules 3and 4of these rules, to establish the chain of custody.

(c) Transportation of all species of timber felled on any non-forest land under as specified in Schedule **I, II and III** of these rules shall not require any Transit Pass within the State of Assam.

Plantation Working Scheme

6. Plantation working schemes are required to be prepared by the Owner for plantation(s) having an area of 10 hectare or more which shall be approved by the Forest Department. There shall be a minimum stipulation to keep at least 1/3rd of the plantation intact without harvesting until at least another 1/3rd of the plantation is regenerated artificially and attains an age of at least 5 (Five) years.

Transit of timber:

7. Transit of timber, operated under these rules, to outside the State shall be governed as per the provisions contained under Assam Forest Regulation 1981 or Rules made there under and the directions of the Hon'ble Supreme Court of India issued in WP(C) 202/1995; 171/1996 and in any other matter ancillary and incidental thereto and the guidelines/orders issued by the Ministry of Environment, Forest and Climate Change and Director General Foreign Trade, Government of India in this regard.

Trees felled in violation of these Rules

8. (1) Timber obtained from trees felled in violation of these rules, shall be seized and deemed to be Government property. If the Divisional Forest Officer after conducting an enquiry is satisfied that the seized timber originated from non-forest land owned by the claimant, then he may release the seized timber to the claimant(s) and the owner/legal title holder(s) after recovery of an amount equal to 50% of the government royalty of the timber.

(2) If the offence is committed by the same person more than three times, the timber shall be confiscated and the seized timber shall be deemed to be Government property and any tools, implements, vehicles, vessels etc used to commit the offence shall be seized and action shall be initiated in accordance with the provisions contained under the Regulation.

(3) If it is found that such offences are being repeatedly committed in a particular area, including frequent release of seized timber, the Circle Conservator concerned shall cause a detailed enquiry into the matter and may direct action to be taken for prevention of such offences.

(4) In case the tree species is endemic and threatened or endangered or rare, felling of the same may not be permitted under these rules. In case of plantations of these species with an area of 10 hectare or more, the Owner shall retain 1/3rd of the trees for future generations.

Miscellaneous

9. (1) The State Government shall add or delete species as mentioned in Schedule I, II and III by notification published in the Official Gazette.

(2) The format of Annexures appended is indicative in nature and the same may be appropriately framed in the online system.

(3) If, during any inspection by the Department, contents of the self-certification by any owner or applicant are found to be incorrect, false, fabricated, forged, the Registration Certificate, felling permission and Certificate of Origin, as the case may be, shall be liable to be cancelled and the outturn shall be liable to be seized besides other actions as permitted under law.

Repeal and saving

10. (1) The Assam (Control of Felling and Removal of Trees on Non-Forest land) Rules, 2002, as amended till date, is hereby repealed.

(2) Notwithstanding such repeal, any action or orders made under the rules so repealed shall be deemed to have been validly taken or orders made under the provisions of these rules.

RAVI S. PRASAD,
Additional Chief Secretray to the Govt. of Assam,
Environment and Forest Department.

SCHEDULE-I

[See clause (i) of sub-rule (1) of rule 5]

1. Aam (*Mangifera indica*)
2. African Tulip tree *(Spathodea campanulata)*
3. Ahat (*Ficus religiosa*)
4. Ajhar (Lagerstroemia speciosa)
5. Akashmoni (*Acacia auriculiformis*)
6. Alder Tree (*Alnus glutinosa*)
7. Amlokhi (Phyllanthus emblica)
8. Ashoka (*Saraca asoca*)
9. Atlas Nona (*Annona reticulata*)
10. Bottle brush (*Callistemon viminalis*)
11. Cashewnut (*Anacardium occidentales*)
12. Casuarina (*Casuarina equisetifolia*)
13. Christmas Tree (*Araucaria columnaris*)
14. Coconut (*Cocos nucifera*)
15. Debdaru (*Polyalthia longifolia*)
16. Eucalyptus (*Eucalyptus obliqa*)
17. Hilika (Terminalia chebula)
18. Hitkura/Kothiya Korai (*Derris robusta*)
19. Indian Cork Tree (*Millingtonia hortensis*)
20. Indian Coral tree (*Erythrina variegata*)
21. Indian Rubber Tree *(Ficus elastica)*
22. Isreali Babul (*Acacia tortilis*)
23. Jacaranda (*Jacranda mimosifolia*)
24. Jamun (*Syzygium cumimi*)
25. Kadam (*Neolamarckia cadamba*)
26. Kathal (*Artocarpus integrifolia*)
27. Koroch (*Pongamia pinnata*)
28. Krishna Chura (*Delonix regia*)
29. Leteku (*Baccaurea ramiflora*)
30. Madhuriam (*Psidium guajava*)
31. Malabar Neem (*Melia dubia*)
32. Mangium/Black wattle (*Acacia mangium*)
33. Manipuri urohi (*Parkia roxburghii*)
34. Mokka Teteli (*Samanea saman*),
35. Mulberry (*Morus alba*)
36. Pagoda tree (*Styphlonobium japonicum*)
37. Palmyra Palm/Taal (*Borassus sps*)
38. Paniol (*Flacouritajangomas*)
39. Paradise Tree (*Simarouba glauca*)
40. Poplar (*Populus spp*)
41. Putranjiva (*Putranjiva roxburghii*)
42. Radhachura (*Cassia javanica*)
43. Ronga chandan (*Adenanthera pavonina*)
44. Rubberwood tree (*Hevea brasiliensis)*
45. Silver Oak (*Grevillea robusta*)
46. Simul (*Bombax ceiba*)
47. Siris (*Albizia lebbeck*)
48. Som (*Machilus gamblei*)
49. Subabul (*Leucanea leucocephala*)
50. Tamul/Areca Nut tree (*Areca catechu*)
51. Teteli (*Tamarindus indica*)
52. Vilayati babul (*Prosopis juliflora*)
53. Walnut (*Juglans regia*)
54. Ghoraneem (*Melia azaderach*)

SCHEDULE-II

[See clause (ii) of sub-rule (1) of rule 5]

1. Akashmoni (*Acacia auriculiformis*)
2. Mokka Teteli (*Samanea saman*)
3. Hitkura/Kothiya Korai (*Derris robusta*)
4. Silver Oak (*Grevillea robusta*)
5. Subabul (*Leucaena leucocephala*)
6. Putranjiva (*Putranjiva roxburghii*)
7. Rongachandan (*Adenanthera pavonina*)
8. Bottle brush (*Callistemon viminalis*)
9. Radhachura (*Cassia javanica*)
10. Karpur (*Cinnamomum camphora*)
11. Som (*Machilus gamblei*)
12. Ghoraneem (*Melia azaderach*)
13. Siris (*Albizzia lebbeck*)
14. Manipuri urohi (*Parkia roxburghii*)

SCHEDULE-III

[See sub-rule (2) of rule 5]

1. Sanchi (*Aquilaria malaccensis*) and/or any other species of the genus Aquilaria from which essential oils and other derivatives are extracted.
2. Boga Chandan (*Santalum album*).

Annexure-I

APPLICATION FOR
REGISTRATION OF PLANTATION RAISED ON NON-FOREST LAND
[See rule 3]

To

The Divisional Forest Officer

.....Division,
.....

Sub: Request for Registration of Plantation raised on my/our non-forest land.
Sir,

I/We would request you to kindly register the plantation of trees raised on my/our Pattaland. The details of the land and plantation along with the required documents are furnished below.

1. Name and address of the Pattadar: Sri.....
   Vill.....P.O.....
   P.S.....Dist.....

2. Father's Name and address: Sri/Late.....
   Vill.....P.O.....
   P.S.....District.....

3. Mobile number and Email-id:
4. Details of the Pattaland over which the plantation has been raised:

   Dag No.....Patta No.....
   Mouza.....
   Revenue Circle.....
   Area of the Plot (in Bigha or Hect).....
   Year of issue of Patta.....
   Nature of Patta (Annual/Periodic/Special grant).....

4. Details of the Plantation:
   (a) Years of Creation
   (b) Area
   (c) Species wise no. of trees planted,
   (d) Spacing,
   (e)Average height,
   (f) Average girth,
   (g) Boundary description of the plantation area.

5. List of documents to be submitted:
   i. Self-attested Land document/MiyadiPatta/Lease deed of land.
   ii. A self-attested scale map of the non-forest land where the plantation has been raised.
   iii. Up to date land revenue payment receipt
   iv. Registration and/or Ownership details of the Tea Gardens.
   v. Receipt of the application fee of Rs. 1000/- (Rupees One Thousand Only) per hectare paid online in the Website/Portal.
   vi. Species-wise number and age of standing trees
   vii. Self-declaration about the year(s) of creation of plantation.
   viii. Geo-tagged photographs of the site.
   ix. Distance of the plantation from nearest Forest/PA(Specify name of the nearest Forest/PA)along with proof such as google map/KML/KMZ/SHP etc.

Signature of the Pattadar(s)
(with date)

Enclo: As per the list of documents mentioned under Sl. No.5.

Annexure-II

FIELD VERIFICATION REPORT

[See sub rule (4) of rule 3]

1. Date of Field Verification:
2. Name of Pattadar/Khatiander/Owner and address

Sri.....
Vill....., P.O.....
P.S.....Revenue Circle.....

3. Father's name.....
4. Details of the Plot: Dag No.....Patta No.....
Mouza.....Circle.....

5.Nature of Patta/Khatian and year of issue.....(Annual/Periodic/SpecialGrant/Tenanted/Land under any religious or charitable institution)

6. Area of the plot (in Bigha or Hect.).....

7. Minimum distance of the plot from the nearest RF/Protected Area(Specify forest name).....

8. Whether any value has already been paid against the trees.....
If so, the details.

9.Details of the standing trees:

Sl.No. of the trees	Species	Girth at breast height(in meter)	Approx. height of the tree (in meter)	Approx. Volume (in Cu.M)	Remarks
1	2	3	4	5	6

Certified that.....no. of trees as described above have been found physically standing within the plot of land specified above.

Signature, Name in full (in capital)
and Designation of the of the Forest Officer
with date and seal.

Signature and names in full of the witnesses, if any, with date:

1.....

2.....

3.....

Annexure-III

GOVERNMENT OF ASSAM
OFFICE OF THE DIVISIONAL FOREST OFFICER.....DIVISION
[See rule 3]

(QR Code)

No..... Date.....

Certified that Sri.....S/o ..... resident of village .....District.....has raised plantation of (name(s) of the species).....on.....Ha/Bigha/Katha of his land under Dag No.....Patta No.....during.....situated at a distance of .....Km from the nearest Forest/PA (Specify Name of the nearest Forest/PA).He has planted the following trees.

Sl. No	Name of the Species (Local/Botanical)	Approx. Spacing	No. of trees planted	Approx. Volume (in Cu.M)
1	2	3	4	5

Divisional Forest Officer
.....Division

General conditions:

1. This Plantation Registration Certificate does not confer any legal right as far as ownership of the plot of land on which plantation was raised and the same cannot be used as supporting document/evidence for claiming ownership on said land in any judicial/extrajudicial fora.
2. The validity of this Plantation Registration Certificate is for 5 (Five) years and the Owner has to apply again for renewal thereafter. The renewal may be granted for a further period of 5 (Five) years, after proper field verification, subject to other conditions as specified under these Rules.

Annexure-IV

FORM FOR APPLICATION FOR CERTIFICATE OF ORIGIN

[See rule 4]

To

The Divisional Forest Officer
.... Division,

Sub: Permission for operation of trees under C.O.

Sir,

I would request you to kindly accord me the necessary permission to operate the following trees existing in my pattaland. The necessary details of the land and trees along with the required documents are furnished below:

1. Name and address of the Pattader: Sri.....
   Vill..... P.O.....
   P.S.....Dist.....

2. Father's Name and address: Sri/Late.....
   Vill.....P.O.....
   P.S.....District.....

3. Details of the Pattaland over which the plantation has been raised:

   Dag No.....Patta No.....
   Mouza.....
   Revenue Circle.....
   Area of the Plot (in Bigha or Hect).....
   Year of issue of Patta.....
   Status of Pattaland (Annual or Periodic)...

4. Whether the Plantation is registered: Yes/No.
5. If yes give Registration Certificate number.
6. Details of trees standing over the Pattaland:

Tree Sl. No.	Species	Approximate Girth at breast height in meters	Approx. height of the tree in meters	Remarks, if any
1	2	3	4	5

7. No. of trees required to be operated (The tree serial no.s required to be operated should be encircled in the Table at point No.6 above).
8. Purpose of Operation: Domestic Use/For Sale
9. Name(s) and address(s) of consignee(s) to whom the outturn is intended to be transported.
10. Registration and/or ownership details of Tea Gardens:
11. List of documents to be submitted in case of tree(s)/plantation is not registered under these Rules:
    i. Self-attested Land document/MiyadiPatta/Lease deed of land.
    ii. A self-attested scale map of the non-forest land where the plantation has been raised.
    iii. Up to date land revenue payment receipt
    iv. Receipt of the application fee of Rs. 2000/- (Rupees Two Thousand Only) per hectare paid online in the Website/Portal.
    v. Species-wise number and age of standing trees
    vi. Self-declaration about the year(s) of creation of plantation.
    vii. Geo-tagged photographs of the site.
    viii. Distance of the plantation from nearest Forest/PA (Specify name of the Forest/PA)along with proof such as google map/KML/KMZ/SHP etc.
12. List of documents to be submitted in case of tree(s)/plantation registered under these Rules:
    i. Up to date land revenue payment receipt
    ii. Receipt of the application fee of Rs. 2000/- (Rupees Two Thousand Only) per hectare paid online in the Website/Portal.
    iii. Species-wise number and age of standing trees
    iv. Geo-tagged photographs of the site.
    v. Copy of Registration Certificate.

Undertaking by the Pattaland/Tenant(Rayats)/Owner

I, Sri.....S/o.....of.....Vill.....Mouza..... P.S..... District.....hereby state that the information provided by me in this application form is correct and true. I will be liable for any legal action in case said information is found to be incorrect or false at any point of time.

Encl: As per the list of documents mentioned in Sl. No. 9 and 10, as applicable.

Signature of the Pattadar/Tenant/Owner
(With seal)

Annexure-V

REPORT OF THE PIECE-PASSING OFFICER

[See rule 4]

1. Name of the Pattadar and address:

Sri.....
Village.....P.O.....
P.S.....Revenue Circle.....
District.....

2. Details of the plot: Dag No.....Patta/Khatian No.....
Mouza.. .....Circle.....

3. Details of outturn of the trees:

Sl. No.	TMB of the trees	Relevant LMB page No.	Species	No. of Pieces of the outturn	Total length of the pieces in m	Total vol of the outturn in cum	Vol. as per vol table for the particular girth class in cum	Percentage of deviation of vol (i.e. Col 6- Col 7 / Col 7	Remarks if any
1	2	3	4	5	6	7	8	9	10

Encl: Log Measurement Book page Nos.

Findings and recommendation of the ACF
if asked to enquire into the reasons of increase
in volume beyond tolerance limit.

Signature, Name in full (in capital) and
Designation of the Piece Passing Officer
with date and seal

Annexure-VI

CERTIFICATE OF ORIGIN

[See rule 4]

(Trees/Shade Trees)

No..... Dated .....

Name of Division: Name of Range: Name of Beat:
Name of the Owner: Name of Tea Garden:
Name of Village/Town/City: Post Office: Police Station:
Patta No: Dag No: Revenue Circle:
Khatian No:
Geo-Coordinates of Site: Latitude: Longitude: Area (in Ha):
Total no. of standing trees: Total no. of logs: Total Vol (in CuM):
Distance of the Plantation Site from Nearest Forest/PA (Specify name of Forest/PA)(in Km):

This C.O. is only valid for use from 00.00.0000 (date) to 00.00.0000 (date).

Table-VI/1: OUTTURN GENERATED

QR Code-1 QR Code-2

DETAILS OF TREES MARKED					DETAILS OF PIECES PASSED				
Sl No.	Species	GBH (Mtr)	Approx Height (Mtr)	Volume (CuM) as per volume table	Log Serial No.	Girth (Mtr)	Length (Mtr)	Volume (CuM)	Details of firewood, if any
1	2	3	4	5	6	7	8	9	10

Table – VI/2: OUTURN FOR TRANSPORTATION

(Valid for transportation within the State of Assam only.
For transportation outside the State of Assam, this document must be accompanied by a valid Water-marked Transit Pass issued by the Assam Forest Department)

QR Code-3 QR Code-4 QR Code-5

Transportation code: Date:

Valid for transportation from 00.00.0000 (date) to 00.00.0000 (date) for below mentioned outturn only.

Total no. of logs: Total Volume:
Vehicle No: Vehicle type:
Name & Address of Consignee:

DETAILS OF OUTTURN BEING TRANSPORTED				
Log Sl no.	Species	Girth (Mtr)	Length (Mtr)	Vol (CuM)
1	2	3	4	5

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